

STATE OF MICHIGAN
IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

Case No. 2023-5907-PP
Hon. Jenny L. McNeill

EMILY A. WATSON,
Petitioner,

v.

ANDREW JAMES PIGORS,
Respondent.

FAMILY DIVISION

EMILY A. WATSON,	
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AFFIDAVIT OF DISQUALIFICATION

(Filed Pursuant to MCR 2.003(B) and MCR 2.003(D)(1))

COUNTY OF MUSKEGON

I, **Andrew James Pigors**, being first duly sworn, depose and state as follows:

I. IDENTITY AND STANDING

2. I am the father of the minor child, **L.D.W.**, born November 9, 2022. I file this Affidavit in support of my Motion for Disqualification of the Hon. Jenny L. McNeill, pursuant to MCR 2.003(B), which requires that a motion for disqualification be "accompanied by an affidavit setting forth the facts and reasons for the claim of disqualification."

II. PATTERN OF EX PARTE ORDERS WITHOUT NOTICE

4. Every one of the 24 ex parte orders was adverse to me. Not one ex parte order was entered in my favor. This asymmetric pattern is not consistent with impartial adjudication.

6. On **August 8, 2025**, Judge McNeill entered **five (5) additional ex parte orders** in a single day — all adverse to me, all without notice, and all without affording me any opportunity to respond. This unprecedented consolidation of adverse rulings on a single day further demonstrates a pattern inconsistent with impartial adjudication.

7. As of the date of this Affidavit, I have been completely separated from my child for approximately **229 consecutive days** — since the last parenting time contact on **July 29, 2025** — without a final adjudication on the merits and without the evidentiary hearing required by MCR 3.210(D).

III. EX PARTE REVIEW OF FELONY-DERIVED USB RECORDING

9. Michigan is a two-party consent state. MCL 750.539c makes it a felony to record a private conversation without the consent of all participants. Evidence obtained through such a

violation is inadmissible under MCL 750.539g.

10. Judge McNeill admitted on the record that she directed her staff to review this USB recording **ex parte**, stating: "**Yes, I had my staff listen to it.**" This occurred before I was notified of the recording, before I had any opportunity to challenge its admissibility, and before any authentication proceeding under MRE 901.
 11. The same-day timeline — evidence submitted, ex parte staff review, emergency order issued — demonstrates that the outcome was determined before I had any opportunity to participate. I was denied due process.
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IV. MANIPULATION OF HEALTHWEST MENTAL HEALTH EVALUATION

12. In September 2025, Judge McNeill ordered me to undergo a mental health assessment through HealthWest (West Michigan Community Mental Health).
14. Rather than accepting this exculpatory result, Judge McNeill sent a **biasing letter directly to the HealthWest evaluator** on or about **September 9, 2025** — outside the presence of the parties and without notice to me — and ordered a **second evaluation**.
15. The second evaluation was conducted on **September 11, 2025** and produced a materially different finding. This second report was routed to **Judge McNeill's secretary** rather than the Clerk of Court, circumventing the normal filing process. **This report was never disclosed to me.**
17. Judge McNeill subsequently referred to the first (exculpatory) evaluation dismissively on the record as a **"ghost" mental health evaluation**, demonstrating prejudice and

contempt for evidence favorable to me.

V. CONTEMPT SENTENCES WITHOUT MEANINGFUL HEARING

Show Cause #5 — November 15, 2024

20. During the hearing, I attempted to present a **police report** I had obtained immediately after the parenting exchange, having called law enforcement because of concerns about my child's physical condition. **The court muted me three (3) times** while I attempted to present this exculpatory evidence. The court reporter also muted my audio on at least one occasion.

21. At the time Judge McNeill issued the arrest order, I was **physically present at a hearing before the Hon. Maria Ladas Hoopes** in the 60th District Court in Muskegon County. Judge McNeill's issuance of an arrest order while I was appearing before her own former law partner raises serious concerns about the entanglement of these courts.

22. The two-week jail sentence directly caused me to **lose my house and my employment**.

Show Causes #6 and #7 — November 26, 2025

23. Judge McNeill sentenced me to **forty-five (45) days in jail** for contempt on Show Causes #6 and #7, which were litigated together.

24. The alleged violation was that I sent messages through the court-sanctioned **AppClose co-parenting application** requesting to see my child, L.D.W., for the child's **third**

birthday on November 9, 2025. My parenting time had been suspended since **August 8, 2025**.

25. A father's request to see his child on the child's birthday — sent through a platform designed for parental communication — is not contempt. It is the most basic expression of parental love.

26. Judge McNeill imposed this sentence **the day before Thanksgiving**, maximizing the punitive impact and further separating me from my child during the holiday season.

27. The 45-day jail sentence directly caused me to **lose my second house and my second employment**.

Cumulative Impact

28. In total, Judge McNeill's contempt orders have resulted in: **59 days of incarceration**, the loss of **two homes**, the loss of **two jobs**, and extended periods of homelessness.

VI. FILING BOND RESTRICTING COURT ACCESS

29. On **May 16, 2025**, Judge McNeill entered an order imposing a **\$250 filing bond** on me, effectively conditioning my right to petition the Court upon payment of a monetary bond.

VII. JUDICIAL CONFLICT WEB — CHIEF JUDGE DISQUALIFICATION

31. Before their appointments to the bench, Judge McNeill, Chief Judge Kenneth S. Hoopes, and Judge Maria Ladas Hoopes were **all partners at the same law firm** — Ladas, Hoopes & McNeill — located at 435 Whitehall Road, North Muskegon, Michigan 49445.
32. Chief Judge Hoopes married Maria Ladas Hoopes. Three judges from one small law office now preside over courts in Muskegon County.
34. Judge Maria Ladas Hoopes has also ruled adversely against me, **evicting me and refusing to consider my evidence and exhibits at the eviction hearings.**
35. Because the Chief Judge was Judge McNeill's law partner, has independently demonstrated bias against me, and his wife has also ruled adversely against me, no judge of the 14th Circuit Court or 60th District Court in Muskegon County can impartially review the Motion for Disqualification. Referral to the SCAO for assignment of a visiting judge is necessary.
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VIII. DEFENDANT'S INSTITUTIONAL CONNECTIONS

IX. SUMMARY OF GROUNDS

39. Based on the foregoing, the specific grounds for disqualification of the Hon. Jenny L. McNeill under MCR 2.003(C)(1) include:

b. Ex parte review of a felony-derived USB recording (MCL 750.539c violation) —

c. **Ex parte communication with a HealthWest evaluator** to obtain a second

evaluation after the first cleared me, followed by suppression of the exculpatory result (*Brady* violation);

d. **Two contempt sentences** (59 days total) imposed without affording me meaningful opportunity to present a defense — including muting me three times during a remote hearing;

f. **229 consecutive days of complete separation** from my child without a final evidentiary hearing on the merits.

40. No single one of these facts alone would necessarily compel disqualification. But taken together, they establish a pattern that would cause a reasonable, objective person to question whether I can receive a fair hearing before Judge McNeill. Under *In re Contempt of Henry*, 282 Mich App 656, 679 (2009), doubts should be resolved in favor of disqualification.

FURTHER AFFIANT SAYETH NAUGHT.

Andrew James Pigors

